MIAMI
WIIPICA, LLC

1950 Roland Clarke Pl Reston STE 210E, VA 20191
256-565-1604 / https://wiipica.mn-e.com

NON-DISCLOSURE AGREEMENT

THIS AGREEMENT, made and entered into as of August 14, 2020 by and between Miami Wiipica, LLC (Wiipica) (hereinafter referred to as "Team Leader"), a Virginia limited liability company with its principal office located at 1950 Roland Clark Pl, STE 210E Reston, VA 20191; and Excell Construction Corp. (hereinafter referred to as "Team Member"), a Rhode Island Corporation with principal offices at 5 Division St Bldg A East Greenwich, RI, 02818-3800.

WHEREAS, each party to this agreement has reasonably determined that the exchange of Proprietary Information (as defined below) will be of mutual benefit to the parties in pursuit of any construction services solution that is innovative and addresses the federal contracting market program; and

WHEREAS, the Parties have determined that Proprietary Information would not be exchanged between them until and unless an agreement were in place restricting the use and further disclosure of the Proprietary Information to be exchanged;

NOW, THEREFORE, in consideration of receipt of such Proprietary Information and the mutual promises made herein, the Parties agree as follows:

1. The term "Proprietary Information" means information and data relating to the Parties' technology, intellectual property, products, services or other business opportunities, in whatever form such information may be disclosed, including, without limitation: (i) product or service information, including designs and specifications, development plans, methodologies, technical approaches, patent applications, and strategy; (ii) marketing information, including lists of potential or existing customers or suppliers, marketing plans and surveys; (iii) computer software, including codes, flowcharts, algorithms, architectures, menu layouts, routines, report formats, data compilers and assemblers; (iv) financial information, including sales, pricing and revenue information; (v) proposal material and pricing information, including methodologies and technical approach; and if applicable, (vi) Government programmatic information and information concerning the opportunity and its contractors. For Proprietary Information exchanged in relation to a Government proposal or other Government opportunity, the parties shall treat the Proprietary Information in strict accordance with the Procurement Integrity Act. Under this Agreement, Proprietary Information shall include, but not be limited to, derivative and residual forms of Proprietary Information, as well as proprietary information of STOPSO's client(s) and licensors, all of which shall be treated in strict accordance with the provisions herein.

2. "Proprietary Information" shall not include information which the recipient canprove: (i) that as of the time of receipt by the recipient is in the public domain or subsequently enters the public domain without breach of this Agreement by the recipient; (ii) that as of the time of receipt by the recipient, recipient is able to demonstrate that it is already known to or in the possession of

the recipient; (iii) is independently developed by or for the recipient as evidenced by the recipient's own files and records; (iv) is received in good faith by the recipient from a third party that was lawfully in possession of the information; (v) is disclosed to third parties, including the U.S. Government, by the disclosing party on a non-confidential basis; or (vi) that the Parties mutually agree in writing to release from the terms of this Agreement. The burden of proof that Proprietary Information is subject to one of the above exclusions shall be borne by the party claiming such exemption.

3. The term of this Agreement shall continue for a period of one (1) year from the effective date unless extended by mutual agreement of the parties or terminated by written notice. However, the obligation to protect proprietary information disclosed hereunder shall survive for a period of one (1) year after the expiration or termination of this Agreement. Either party may terminate this Agreement upon thirty (30) days written notice to the other party.

4. Each party agrees that, during the Term of this Agreement and for a period of one (1) year from the expiration or termination of this Agreement, any Proprietary Information received from the other party: (i) will only be used for the purpose of the Opportunity; (ii) will not be disclosed to any third party without prior written approval of the disclosing party; (iii) may only be disclosed within the receiving organization on a "need-to-know" basis to persons who have been advised of the existence of this Agreement and agree to be bound by its terms; (iv) will be treated with at least the same degree of care as the recipient treats its own Proprietary Information, but in no event less than a reasonable degree of care; (v) will be copied only to the extent necessary for the purpose of the Opportunity; and (vi) will remain the property of the disclosing party.

5. In the event either party receives a subpoena or other validly issued administrative or judicial process demanding confidential or proprietary information of the other party, the recipient shall promptly notify the disclosing party and tender to it the defense of such demand. Unless the demand shall have been timely limited, quashed, or extended, the recipient shall thereafter be entitled to comply with such demand to the extent permitted by law. If requested by the party to whom the defense has been tendered, the recipient shall cooperate (at the expense of the requesting party) in the defense of a demand.

6. In order for information to be treated as Proprietary Information hereunder, it must be marked as such when it is disclosed in written form, and, in the event information that is intended to be treated as Proprietary Information is disclosed verbally, the disclosing party shall identify the Proprietary Information as such at the time of verbal discussions and followed by a written statement by the disclosing party no later than 5 days post discussions. Neither the execution and delivery of this Agreement, nor the furnishing of any Proprietary Information by the Parties hereunder shall be construed as granting to any other party to this Agreement, either expressly, by implication, estoppel, or otherwise, a license under any trademark, patent, copyright or any other intellectual property right hereafter owned or controlled by the party furnishing same.

7. The parties agree that, due to the unique nature of the Disclosing Party's Proprietary Information, there can be no adequate remedy at law for a breach of the Receiving Party's obligations hereunder, that any such breach shall result in irreparable harm to the Disclosing Party and, therefore, upon any such breach or threatened breach, the Disclosing Party shall be entitled to seek injunctive relief to enforce the terms of this Agreement in addition to remedies it may have at law. In no event shall either party be liable to the other party under this Agreement for any incidental, multiple, indirect, special, exemplary, consequential or punitive damages.

8. Upon termination, each Party shall cease use of the other Party's Proprietary Information, and shall either return or destroy all Proprietary Information, including copies and excerpts thereof. Upon the written request of either Party the Receiving Party shall furnish the other Party with written certification of destruction or return.

9. All Proprietary Information disclosed hereunder is provided "as is" and neither party makes any representation, be it express or implied, as to its sufficiency, adequacy, fitness for any particular purpose contemplated hereunder or freedom from defect or infringement of any intellectual property rights of a third party, nor shall either party incur any liability or obligation whatsoever by virtue of use of or reliance upon same except as provided in paragraph 4 above.

10. Each party agrees not to disclose or use any Proprietary Information of the other party in any manner, directly or indirectly, for the purpose or with the result of obtaining, for itself or any third party, an advantage, benefit or gain, whether real or potential, over the general public, whether in connection with investing or trading in securities or for any other purpose other than the Opportunities. Each party acknowledges that such use or disclosure of Proprietary Information may constitute insider trading in violation of federal law, resulting in severe sanctions on individuals and the corporate entities involved in insider trading.

11. In compliance with U.S. Department of Commerce Export Administration Regulations and the U.S. Department of State International Traffic in Arms Regulations as they exist during the applicability of this Agreement, and notwithstanding any other provision of this Agreement, neither party shall attempt to, nor knowingly export or re-export to any country prohibited from obtaining such data, either directly, or indirectly through affiliates, licensees, or subsidiaries, any U.S. source technical data acquired from the other party, any products utilizing such data, or any proprietary/confidential information provided under this or any ancillary agreements, to any countries outside the U.S. which export may be in violation of U.S. Export Laws or Regulations. Nothing in this provision shall relieve the recipient from any other obligation stated elsewhere in this Agreement not to disclose such information.

12. Nothing in this Agreement is intended to, or shall be deemed to, constitute a joint venture or partnership of any kind between the Parties nor any separate business entity.

13. Each party shall bear its own respective costs, expenses, risks and liabilities arising from its activities hereunder.

14. This Agreement is accepted in the Commonwealth of Virginia and its validity shall be determined under and its terms construed in accordance with the laws of the Commonwealth of Virginia, without regard to principles of conflicts of law.

15. All notices required under this Agreement shall be in writing and shall be delivered by personal service, facsimile, certified mail, or electronic mail (with receipt acknowledged by recipient). Any notice sent by certified mail will be deemed to have been given five (5) days after the date on which it is mailed. All other notices shall be deemed effective upon receipt. The parties designate the following individuals for receipt of notices hereunder:

Company	Miami Wiipica, LLC	Excell Construction Corp
Point of Contact Info	Cecil Whitlock cwhitlock@mn-e.com Ph: 256-565-1604	Eric Coffie eric@govcongiants.com Ph: 786-477-0477

16. This Agreement constitutes the entire understanding between the Parties with respect to the subject matter hereof and supersedes all other understandings or representations, oral or written, relating thereto. This Agreement may not be modified except by a written document executed by both Parties.

17. If any provision of this Agreement is held by a court of competent jurisdiction to be invalid, void, or unenforceable, the remaining provisions shall nevertheless continue in full force without being impaired or invalidated in any manner.

18. Neither party may assign its rights or delegate its duties or obligations under this Agreement without prior written consent of the other party. Any attempt to do so is void. This Agreement can only be modified by the written agreement of the parties. A waiver of any provision of this Agreement is not effective unless it is in writing and signed by the party against which the waiver is sought to be enforced.

19. Nothing in this Agreement shall prohibit or restrict either party's right to develop, use, or market products or services similar to or competitive with those of the other party disclosed in the Confidential Information as long as it does not breach this Agreement. Each party acknowledges that the other party may already have products or services similar to or competitive with those of the other party disclosed in the Proprietary Information.

20. Neither party may use the name, trade name, trademark, logo, acronym or other designation of the other in connection with any press release, advertising, publicity materials or otherwise without the prior written consent of the other party.

21. IN NO EVENT SHALL EITHER PARTY, ITS AFFILIATES OR EACH OF THEIR PARTNERS, PRINCIPALS, AGENTS, SERVANTS, PERSONNEL, OFFICERS OR DIRECTORS BE LIABLE FOR CONSEQUENTIAL, SPECIAL, INDIRECT, INCIDENTAL, PUNITIVE OR EXEMPLARY DAMAGES, COSTS, EXPENSES OR LOSSES (INCLUDING WITHOUT LIMITATION, LOST PROFITS AND OPPORTUNITY COSTS) RELATING TO THIS AGREEMENT, NOR SHALL THEY BE LIABLE FOR ANY CLAIM OR DEMAND BY ANY THIRD PARTY, EVEN IF THE DISCLOSING PARTY HAS BEEN APPRISED OF THE LIKELIHOOD OF SUCH DAMAGES OCCURRING. THE PROVISIONS OF THIS PARAGRAPH 12 SHALL APPLY REGARDLESS OF THE FORM OF ACTION, DAMAGE, CLAIM, LIABILITY, COST, EXPENSE OR LOSS, WHETHER IN CONTRACT, STATUTE, TORT (INCLUDING WITHOUT LIMITATION NEGLIGENCE), OR OTHERWISE. THE PROVISIONS OF THIS PARAGRAPH SHALL SURVIVE THE TERMINATION OF THIS AGREEMENT FOR ANY REASON.

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WIIPICA, LLC

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Company	EXCELL CONSTRUCTION CORP	MIAMI WIIPICA, LLC
Name and Title of Authorized Signer	Delano Joseph Brooks Vice President	Cecil Whitlock Vice President
Date	8/15/2020	8/17/2020
Signature		

IN WITNESS WHEREOF, the Parties hereto have, through duly authorized representatives, executed this Agreement effective as of the day, month and year set forth above.